

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

June 02, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Dykema Gossett LLP vs. SCSA Group, Inc. 25-01514761	Demurrer to First Amended Cross-Complaint Plaintiff/Cross-Defendant, Dykema Gossett LLP ("Dykema") demurs to the entire First Amended Cross-Complaint ("FAXC") of Cross-Complainants, SCSA Group, Inc. and David Dewyke, and each of the six causes of action therein for failure to state facts sufficient to constitute a cause of action. Meet and Confer The declaration of Dykema's counsel establishes compliance with the meet and confer requirements of Code of Civil Procedure section 430.41 as prior to filing the instant demurrer, beginning on February 4, 2026, and thereafter, Dykema's counsel had several meet and confer conferences and email exchanges with Cross-Complainants' counsel regarding the deficiencies in the FAXC in that each cause of action failed to state facts sufficient to constitute a cause of

	action against Dykema and were barred by the statute of limitations, and that Cross-Complainants disagreed and indicated they would not dismiss the FAXC or any of the claims therein. (Declaration of Lucy Mekhael, ¶¶ 3-4.) Merits Dykema first contends that all six causes of action in Cross-Complainants’ FAXC are barred by the statute of limitations pursuant to Code of Civil Procedure section 340.6. Cross-Complainants contend that Dykema improperly uses judicial notice to go beyond the face of the FAXC. Cross-Complainants contend that even if Section 340.6 applies to their claims, there are separate issues of accrual, discovery, and later reconstruction on the face of the pleading which create factual question that are not properly resolved on demurrer. Sham Pleading Dykema contends that the Cross-Complaint contains judicial admissions which were omitted from the FAXC and are subject to judicial notice. “Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment. [Citations.]” (Deveny v. Entropin, Inc. (2006) 139 Cal.App.4th 408, 425.) The sham pleading does not apply if a plausible explanation for the amendment is given. (Id. at p. 426.) “The sham pleading doctrine is not ‘intended to prevent honest complainants from correcting erroneous allegations . . . or to prevent correction of ambiguous facts.’ [Citation.] Instead, it is intended to enable courts ‘to prevent an abuse of process.’ [Citation.]” (Ibid.)
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	Where an amended pleading omits allegations without providing an explanation, the trial court properly considers the allegations from the earlier complaints when ruling on the demurrers. (Larson v. UHS of Rancho Springs, Inc. (2014) 230 Cal.App.4th 336, 345.) The Cross-Complaint alleged that Cross-Complainants’ claims were tolled under Code of Civil Procedure section 340.6(a)(2), and that Dykema’s representation of Cross-Complainants ended in July 2021. (Dykema’s Request for Judicial Notice (“RJN”), Ex. C, Cross-Complaint, ¶¶ 9, 114.) Cross-Complainants do not dispute that these allegations were omitted from the FAXC and do not explain the omission. As these allegations are relevant to the application of the statute of limitations and Cross-Complainants provide no explanation for omitting these allegations from the FAXC, the Court considers them. Statute of Limitations A demurrer can be used only to challenge defects that appear within the “four corners” of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (Blank v. Kirwan (1985) 39 Cal. 3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal. App. 4th 968, 994.) No other extrinsic evidence can be considered. (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.) On demurrer, a complaint must be liberally construed. (Code Civ. Proc. § 452; Stevens v. Superior Court (1999) 75 Cal. App. 4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal. 4th 962, 966-67.) Where the complaint discloses that the statute of limitations bars the action, a general demurrer is an appropriate means to assert such a facial defect. (Saliter v. Pierce Brothers Mortuaries (1978) 81 Cal.App.3d 292, 300 n. 2; Iverson, Yoakum, Papiano & Hatch v.
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Berwald (1999) 76 Cal.App.4th 990, 995; Vaca v. Wachovia Mortg. Corp. (2011) 198 Cal.App.4th 737, 746.)

In order for the statute of limitations bar to be raised by demurrer, it is not enough that the action may be time-barred, it must appear that the action is time-barred. (Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403.) “A general demurrer based on the statute of limitations is only permissible where the dates alleged in the complaint show that the action is barred by the statute of limitations.” (Roman v. County of Los Angeles (2000) 85 Cal.App.4th 316, 324, citation omitted.) “The running of the statute must appear ‘clearly and affirmatively’ from the dates alleged. It is not sufficient that the complaint might be barred. [Citation.] If the dates establishing the running of the statute of limitations do not clearly appear in the complaint, there is no ground for general demurrer. The proper remedy ‘is to ascertain the factual basis of the contention through discovery and, if necessary, file a motion for summary judgment....’ [Citation.]” (Id. at pp. 324-325.)

A statute of limitations runs from the moment a claim accrues. (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1191.) “Traditionally at common law, a ‘cause of action accrues “when [it] is complete with all of its elements”—those elements being wrongdoing, harm, and causation.’ [Citation.]” (Ibid.)

Cross-Complainants concede that Section 340.6 applies to their claims and applies broadly to claims based on violations of an attorney's professional obligations, including excessive-fee and attorney-billing claims such that Section 340.6 applies to the FAXC's claims arising from Dykema's alleged billing practices. (Opposition, 5:13-18.)

Code of Civil Procedure section 340.6(a) states, in relevant part: “An action against an attorney for a

		wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.” (Code Civ. Proc. § 340.6(a).) Code of Civil Procedure “section 340.6(a)’s time bar applies to claims whose merits necessarily depend on proof that an attorney violated a professional obligation in the course of providing professional services. In this context, a ‘professional obligation’ is an obligation that an attorney has by virtue of being an attorney, such as fiduciary obligations, the obligation to perform competently, the obligation to perform the services contemplated in a legal services contract into which an attorney has entered, and the obligations embodied in the Rules of Professional Conduct.” (Lee v. Hanley (2015) 61 Cal.4th 1225, 1236-1237.) “[S]ection 340.6(a) does not bar a claim for wrongdoing—for example, garden-variety theft—that does not require proof that the attorney has violated a professional obligation, even if the theft occurs while the attorney and the victim are discussing the victim’s legal affairs. Section 340.6(a) also does not bar a claim arising from an attorney’s performance of services that are not ‘professional services,’ meaning ‘services performed by an attorney which can be judged against the skill, prudence and diligence commonly possessed by other attorneys.’ [Citation.]” (Id. at p. 1237.) “[T]he attorney-client relationship often requires attorneys to provide nonlegal professional services such as accounting, bookkeeping, and holding property in trust. [Citation.] . . . In light of the Legislature’s intent that section 340.6(a) cover more than claims for legal malpractice, the term ‘professional services’ is best understood to include nonlegal services governed by an attorney’s professional obligations. (Ibid.) “[T]he question is whether the claim, in order to succeed, necessarily
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		depends on proof that an attorney violated a professional obligation as opposed to some generally applicable nonprofessional obligation.” (Id. at p. 1238.) Section 340.6(a) applies to claims that an attorney charged excessive, wrongful, and/or unconscionable fees. (Foxen v. Carpenter (2016) 6 Cal.App.5th 284, 291 [finding that plaintiff’s claims for breach of contract, declaratory relief, money had and received, and breach of the implied covenant of good faith and fair dealing were governed by Section 340.6 as plaintiff’s contract claims were based on defendants’ alleged misconduct in allocating settlement funds]; Levin v. Graham & James (1995) 37 Cal.App.4th 798, 800 [finding that an allegation that a lawyer charged a client excessive, unreasonable or unconscionable fees for professional services does not take the action outside the one-year statute of limitations for wrongful acts or omissions by an attorney in the performance of professional services, and that the statute is not tolled until the client actually pays the fees, but begins to run, when the client knows or should have known the facts constituting the alleged overcharge]; Schultz v. Harney (1994) 27 Cal.App.4th 1611, 1621 [finding an allegation that an attorney engaged in self-dealing to the detriment of his client by charging an excessive and unlawful fee is sufficient to charge an act of professional negligence].) “Under Code of Civil Procedure section 340.6, . . . , the one-year period is triggered by the client’s discovery of ‘the facts constituting the wrongful act or omission,’ not by his discovery that such facts constitute professional negligence, i.e., by discovery that a particular legal theory is applicable based on the known facts. ‘It is irrelevant that the plaintiff is ignorant of his legal remedy or the legal theories underlying his cause of action. Thus, if one has suffered appreciable harm and knows or suspects that professional blunderings is its cause, the fact that an attorney has not yet advised him does not postpone commencement of the
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limitations period.’ [Citations.]” (Worton v. Worton (1991) 234 Cal.App.3d 1638.)

“Section 340.6 states two distinct and alternative limitations periods: One year after actual or constructive discovery, or four years after occurrence (the date of the wrongful act or omission), whichever occurs first. The statute applies to an action for malpractice as well as a breach of fiduciary duty arising out of the performance of an attorney’s duties. [Citation.]” (Britton v. Girardi (2015) 235 Cal.App.4th 721, 732-733

The test for actual injury under Section 340.6 is “whether the plaintiff has sustained any damages compensable in an action, other than one for actual fraud, against an attorney for a wrongful act or omission arising in the performance of professional services.” (Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison (1998) 18 Cal.4th 739, 751.) The fact of damage, not the amount is the relevant consideration. (Adams v. Paul (1995) 11 Cal.4th 583, 589 (“Adams”).) “[T]he character or quality of the injury must be manifest and palpable. ‘The mere breach of a professional duty, causing only nominal damages, speculative harm, or the threat of future harm—not yet realized—does not suffice’ [Citations.]” (Ibid.)

Here, as set forth above, the Cross-Complaint alleged that Cross-Complainants’ claims were tolled under Code of Civil Procedure section 340.6(a)(2), and that Dykema’s representation of Cross-Complainants ended in July 2021. (RJN, Ex. C, Cross-Complaint, ¶¶ 9, 114.)

The FAXC alleges that between 2019 and 2021, Dykema billed Cross-Complainants more than \$800,000, which far exceeded the scope and purpose of the limited appellate engagement, and that the billing records reveal pervasive duplication, vague entries, and undisclosed staffing, work outside the agreed scope, and inaccurate accounting of payments. (RJN, Ex. D,

FAXC, ¶¶ 2, 16.) It is alleged that “[a]fter representation tapered off, Dykema provided no invoices, billing updates, or account statements for approximately 18 months, then shortly before filing this lawsuit reissued and resent invoices purporting to show a claimed balance of \$297,163.84, while crediting only a small fraction of the substantial payments Cross-Complainants actually made.” (Id., ¶¶ 3, 20-21.) It is alleged that “Dykema’s reissued invoices contained vague billing descriptions, undisclosed staffing, work outside scope, duplicative charges, and incorrect payment application. (Id., ¶ 22.) The FAXC alleges that “Cross-Complainants do not allege deficient legal advice, advocacy, or work product. The claims asserted herein do not depend on proof of professional negligence or violations of a legal standard of care, but instead arise from billing practices, failure to disclose staffing and rates, failure to credit payments, statutory noncompliance, and retention of fees beyond the reasonable value of services.” (Id., ¶¶ 23-24.)

Based on the allegations of the Cross-Complaint and FAXC, Cross-Complainants knew or should have discovered facts constituting the alleged wrongful billing practices in 2021, at the latest, as the Cross-Complaint alleges that Dykema continuously represented Cross-Complainants “through approximately July 2021,” and as the FAXC alleges that Dykema billed Cross-Complainants more than \$800,000 between 2019 and 2021. By these allegations, Cross-Complainants knew or should have known facts relating to the alleged wrongful billing practices, i.e., failure to disclose staffing and rates, failure to credit payments, statutory noncompliance, and retention of fees beyond the reasonable value of services, as well as vague billing descriptions, work outside of the scope, and duplicative charges, by 2021. Additionally, the FAXC does not allege a “later account reconstruction” but alleges that Dykema “reissued and resent invoices.” To the extent that the FAXC may allege that additional

	overcharges were discovered in the “reissued” invoices, this does not toll the statute of limitations, and it is the fact of damages, not the amount that is relevant. The fact of the damage occurred at the time Cross-Complainants were billed in 2019-2021. Cross-Complainants also allege actual injury in making “substantial six-figure payments to Dykema.” (Ex. D to RJN, FAXC, ¶¶ 3, 18, 25, 37, 55, 79, 87, 104, 116, 136, 144, 147-148, 162.) The Prayer for Relief seeks general and special damages for all amounts overpaid to Dykema as a result of unreasonable, duplicative, vague, unauthorized, or out-of-scope billing, for restitution of all amounts paid to Dykema in excess of the reasonable value of services, for disgorgement of all fees obtained by Dykema during periods in which it breached its fiduciary duties, violated statutory obligations, or billed improperly, and for set off against any amounts claimed to be owed by Dykema in its Complaint. (Id., Prayer for Relief, ¶¶ 1-4.) Based on the foregoing, Cross-Complainants were required to bring suit within one year after 2021, i.e., in 2022. However, this action was filed on September 25, 2025, such that it is barred by the statute of limitations. In addition, Cross-Complainants do not argue or show that the statute of limitations was tolled, nor could they. As relevant here, the time for commencement of legal action shall not exceed four year except that the period shall be tolled during the time that any of the following exist: (1) The plaintiff has not sustained actual injury. (2) The attorney continues to represent the plaintiff regarding the specific subject matter in which the alleged wrongful act or omission occurred. (Code Civ. Proc. § 340.6(a)(1)-(2).) As set forth above, Cross-Complainants’ allegations support actual injury beginning in 2019, at the earliest, and 2021, at the latest.
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	Next, the Cross-Complaint alleged that “limitations were tolled under Code Civ. Proc. § 340.6(a)(2) during Dykema’s continuous representation through approximately July 2021” (Ex. C to RJN, Cross-Complaint, ¶ 9.) By this allegation, Cross-Complainants admit that Dykema ceased representing Cross-Complainants in July 2021. Thus, at the latest, Cross-Complainants had until July 2022 to file their claims. Even if the four-year limitations period under Code of Civil Procedure section 340.6 applied, Cross-Complainants’ claims would still be time-barred. Based on the allegations of the Cross-Complaint and FAXC, the date of the occurrence or the alleged wrongful act would be, at the latest, in July 2021, when Dykema’s representation of Cross-Complainants ended. Thus, Cross-Complainants would have had to file their claims by July 2025. However, the instant Cross-Complaint was filed on September 25, 2025, after the four-year limitations expired. As Plaintiff’s claims are barred by the limitations set forth in Code of Civil Procedure section 340.6, Dykema’s demurrer to the FAXC is SUSTAINED, without leave to amend. Dykema requests that the Court take judicial notice of the existence and contents of four documents: (1) Notice of Right to Arbitrate served on Defendants and Cross-Complainants SCSA Group, Inc., a California corporation and David Dewyke, an individual on April 29, 2025 (Ex. A); (2) Complaint filed in this action on September 25, 2025 (Ex. B); (3) Cross-Complaint filed in this action on December 9, 2025 (Ex. C); and (4) FAXC filed in this action on January 12, 2026 (Ex. D). The Court GRANTS the request as to Exhibits B through D pursuant to Evidence Code section 452(d) but declines to take judicial notice of the truth of hearsay statements therein. (See Lockley v. Law Office
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		of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.) The Court DENIES the request as to Exhibit A as it is not relevant to the determination of the issues. A court may deny a request for judicial notice on the ground that the material is not relevant to the determination of the issues. (State Compensation Ins. Fund v. ReadyLink Healthcare, Inc. (2020) 50 Cal.App.5th 422, 442-443.) Dykema to give notice
102	Makoff vs. Casa Monterrey, LLC 25-01471820	1. Demurrer to Second Amended Complaint 2. Motion to Strike Portions of Second Amended Complaint Defendant Casa Monterrey, LLC dba Casa Monterrey Apartments (“Defendant”) filed a demurrer and motion to strike. The Demurrer is OVERRULED and the Motion to Strike is DENIED. I. DEMURRER Defendant demurs to the fifth cause of action for fraud/concealment, sixth cause of action for negligent misrepresentation, and seventh cause of action for intentional infliction of emotional distress. “A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.” ’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.)

	“[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) “However, ‘ “[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced.’” (Ibid.) “No error or defect in a pleading is to be regarded unless it affects substantial rights.” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.) “The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (Ibid.) A. Fifth Cause of Action for Fraud/Concealment “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40; see also Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to
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	disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment).” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) “Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as “between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) “All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 41 [citing LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337].) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 41 [citing Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312].) Fraud causes of action must be pled with specificity. “...This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom and by what means the representations were tendered.’” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) With respect to fraudulent concealment claims, however, a plaintiff is not required to allege with the usual detail required in connection with fraud claims based on affirmative representations. In Vega v. Jones, Day, Reavis & Pogue (2004) 121 Cal.App.4th 282, the Court of Appeal found that the trial court had improperly sustained a demurrer to a concealment cause of action on the ground the cause of action on the ground plaintiff had failed to allege the cause of action
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“with the requisite degree of specificity.” (Id., 296.) The court held that “[t]he pertinent question in a concealment case is not who said what to whom,” (Ibid.) Rather the question is whether the defendant intentionally concealed something from plaintiff “so that they would proceed with the transaction.”

Additionally, “[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party.” (Committee on Children’s Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 217, superseded by statute on other grounds in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235.) Less specificity is required for fraud claims when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy. (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356.)

Here, the Court finds that Plaintiff sufficiently alleges a fraudulent concealment cause of action. In particular, paragraphs 3-7, 12, 13, 16, 17, 23, 76-93 support Plaintiff’s cause of action for fraudulent concealment. Plaintiff allegations are sufficiently specific and

The demurrer to the fifth cause of action for fraudulent concealment is OVERRULED.

C. Sixth Cause of Action for Negligent Misrepresentation

“The elements of negligent misrepresentation are (1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.” (Apollo

Capital Fund, LLC v. Roth Capital Partners, LLC (2007) 158 Cal.App.4th 226, 243.)

Plaintiff alleges that Venessa Romo made misrepresentations about the habitability of the apartment without reasonable grounds for believing that the apartment was habitable with the intent to induce Plaintiff to sign the lease for apartment. (SAC, ¶¶ 13-14 and 94-96.) Plaintiff alleges she justifiably relied on Romo's representations and was damaged physically, emotionally, and financially from the misrepresented condition of the apartment. (SAC, ¶¶ 97-122.)

The recommendation is to OVERRULE the Demurrer to the sixth cause of action for negligent misrepresentation.

D. Seventh Cause of Action for Intentional Infliction of Emotional Distress

"The elements of a cause of action for IIED are as follows: (1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress." (Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1273, as modified on denial of reh'g (May 15, 2023); Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007.)

"Additionally, [i]t must be conduct directed at the plaintiff, or occur in the presence of the plaintiff of whom the defendant is aware." (Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1273, as modified on denial of reh'g (May 15, 2023) [internal quotations omitted].) "The requirement that the defendant's conduct be directed primarily at the plaintiff is a factor which

		distinguishes intentional infliction of emotional distress from the negligent infliction of such injury.” (Ibid.) Importantly, “whether conduct is ‘outrageous’ is usually a question of fact.” (Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1274, as modified on denial of reh'g (May 15, 2023).) “[T]he standard for judging outrageous conduct does not provide a ‘bright line’ rigidly separating that which is actionable from that which is not.” (Ibid.) “Indeed, its generality hazards a case-by-case appraisal of conduct filtered through the prism of the appraiser’s values, sensitivity threshold, and standards of civility.” (Ibid.) “The process evoked by the test appears to be more intuitive than analytical. ...” (Ibid.) “A defendant’s conduct is ‘outrageous’ when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007.) “Liability for IIED does not extend to ‘mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.’ ” (Ibid.) “Malicious or evil purpose is not essential to liability for IIED.” (Ibid.) “California’s definition of extreme and outrageous conduct is based on comment d to section 46 of the Restatement Second of Torts.” (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007.) The restatement states: “Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community. Generally, the case is one in which the recitation of the facts to an average member of the community would arouse his resentment against
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the actor, and lead him to exclaim, ‘Outrageous!’ ” (Ibid. [citing Rest.2d Torts, § 46, com. d, p. 73].)

Here, Plaintiff sufficiently alleges an intentional infliction of emotional distress cause of action. Plaintiff has alleged that Defendant “knowingly placing Plaintiff into and keeping Plaintiff in an unsafe, moisture-impacted environment while minimizing the condition and refusing appropriate relief after mold concerns were raised—was extreme and outrageous and done with the intention to cause, or in reckless disregard of the probability of causing, severe emotional distress.” (SAC, ¶ 128.) The allegations establish that Defendant acted with reckless disregard to the probability of causing Plaintiff emotional distress and injury given the probably physical and emotional impact mold exposure and the process of determine what is the root cause of the health problems stemming from mold exposure. For purposes of the demurrer, the Court finds that intentionally exposing Plaintiff to toxic and uninhabitable conditions goes beyond all possible bounds of decency. (See SAC, ¶¶ 123-138.)

The demurrer to the seventh cause of action of intentional infliction of emotional distress is **OVERRULED**.

II. MOTION TO STRIKE

Civil Code section 3294 states:

“(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had

		advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” Importantly, corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive.” (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167.) “An award of punitive damages against a corporation therefore must rest on the malice of the corporation’s employees.” (Id.) “But the law does not impute every employee’s malice to the corporation.” (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167.) “Instead, the punitive damage statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (Id.) “Managing agents” are employees who “exercise[] substantial discretionary authority over decisions that ultimately determine corporate policy,” such as those “decisions that set these general principles and rules.” (Id., at pp. 167-68; Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 714-15.) “To support an award of punitive damages on the basis of conscious disregard of the safety of others, a plaintiff ‘must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.’” (Penner v. Falk (1984) 153 Cal.App.3d 858, 867.) Here, Plaintiff has pleaded facts sufficient to support a punitive damages cause of action. Plaintiff alleged that Venessa Romo was a managing agent acting on behalf of Defendant when she intentionally deceived Plaintiff
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		regarding the habitability of the apartment. Plaintiff alleges that Romo acted with a conscious disregard of Plaintiff's safety when representing that the apartment at issue was habitable when she knew otherwise. (See e.g., SAC, ¶¶ 5-7, 13-15, 77-79, 84-93, 95-97, 103-104, 119-120, 124-128, and 135-137.) The Court acknowledges that Plaintiff did not file an opposition to the Motion to Strike. Still, the SAC contains facts sufficient to support the claim and the Court will resolve the motion on the merits. The Motion to Strike is DENIED. Defendant shall file an answer to the operative Second Amended Complaint within 20 days of notice of this ruling. Plaintiff to give notice
103	Hill vs. Hyundai Motor America 25-01479317	1. Demurrer to Complaint – Off Calendar FAC filed 2. Motion to Strike Portions Of Complaint – Off Calendar FAC filed 3. Case Management Conference – Off Calendar.
104	Team Koncepts General Contractors, Inc. vs. A&G Real Estate and Construction Services, Inc. 24-01376389	Motion to Be Relieved as Counsel of Record Sean Dowsing and Bayan Salehi of Kahan Feld LLP move to be relieved as counsel of record for A&G Real Estate and Construction Services, Inc. dba SCG West Development. The Motion to Be Relieved as Counsel of Record is DENIED, without prejudice. The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. (California Rules of Court, rule 3.1362(d).)

		There is no proof of service showing service of any of the moving papers on the client. In addition, the submitted proof of service shows that only the declaration was served, and only on the opposing party. (See ROA 188, 191.) Further, the notice of motion and motion provide that Sean Dowsing and Bayan Salehi move to be relieved as counsel of record, but only a declaration by Sean Dowsing has been submitted. Due to the defects above, the motion to be relieved as counsel of record is DENIED, without prejudice. Moving attorney to give notice.
105	Kowalczyk vs. Gracey 25-01471642	Motion to Appear Pro Hac Vice x 3 The unopposed applications of attorneys (1) Mitchell Schuster, (2) Stacey Ashby, and (3) Milton Otto of Meister Seelig & Fein PLLC to appear pro hac vice on behalf of Plaintiffs Edward Kowalczyk and The Fifth Veda, Inc. are GRANTED. Moving attorneys met the requirements of California Rules of Court, rule 9.40. Moving attorneys to give notice
106	Pacific Carpets, LLC vs. Panku, Inc. 22-01245791	Motion for Attorney Fees Defendants 2525 Main Apartment, LP (“2525 Main”); Panku, Inc.; ASD Capital Management, LP; and Assured Management, LLC (collectively, “Defendants”) move for an order granting them attorney fees in the amount of \$98,445.00 incurred in the appellate matters arising from the instant action against Plaintiff and Cross-Defendant Pacific Carpets, LLC pursuant to Civil Code section 1717.

	“In any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs.” (Civ. Code, § 1717(a).) Paragraph 28 of the subcontract agreement attached to Pacific Carpets, LLC’s Complaint is titled “Professional Fees” and provides, in relevant part: “Should any claim, action, arbitration or proceeding be commenced between the parties hereto or their representatives concerning any provision of this Subcontract or the Contract Documents or the rights and duties of any person or entity in relation thereto or arising from or relating to Subcontractor’s Work, the party prevailing in such litigation or arbitration, whether by out-of-court settlement or final judgment, shall be entitled in addition to such other relief as may be granted, to the actual sum as and for attorneys’ fees, accounting, expert and consulting fees, and court costs or arbitration fees incurred in such litigation or arbitration and any appeals in connection therewith (collectively ‘Professional Fees’).” For purposes of section 1717, the phrase “on a contract” is liberally construed and will apply “ ‘if (1) the action (or cause of action) “involves” an agreement, in the sense that the action (or cause of action) arises out of, is based upon, or relates to an agreement by seeking to define or interpret its terms or to determine or enforce a party’s rights or duties under the agreement, and (2) the agreement contains an attorney fees clause.’ ” (Westwood Homes, Inc. v. AGCPII Villa Salerno Member, LLC (2021) 65 Cal.App.5th 922, 927.) Pacific Carpets, LLC appealed this Court’s order granting Defendants summary judgment and order releasing the mechanic’s lien against the subject property. The Court of Appeal affirmed both orders and Pacific Carpets, LLC’s petitions for review with the California Supreme
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		Court, as both appeals were denied. For purposes of Civil Code section 1717, Defendants are the prevailing party. Pacific Carpets LLC sued all Defendants for breach of the subcontractor agreement. Because Defendants, even those who were nonsignatories, were sued on the subcontract as if they were parties to it, they are entitled to attorney fees. (Reynolds Metal Co. v. Alperson (1979) 25 Cal.3d 124, 128 [holding that nonsignatory defendants who prevailed in defense against claims based on promissory notes, which provided for recovery of attorney fees, were entitled to their fees since the plaintiff would have been entitled to recover if it had prevailed].) Pacific Carpets, LLC's claims arise out of the subcontract, as they all relate to Pacific Carpets, LLC's performance of services and seek payment for those services. Further, 2525 Main's crossclaim for disgorgement relates to payments made to Pacific Carpets, LLC for services provided under the subcontract. Thus, the Complaint and Cross-Complaint are actions "on a contract," and the requested attorney's fees incurred on appeal are recoverable under section 1717. Based on the Court's experience and knowledge of prevailing rates in the Orange County legal community, the Court finds the hourly rates charged by counsel, which range from \$400 to \$620, to be reasonable in light of counsel's experience and qualifications. Further, the Court finds that the 185 hours reflected in the lodestar is a reasonable number of hours to expend responding to two appeals. In light of the above, Defendants' Motion for Attorney Fees is GRANTED. Defendants to give notice.
107	Moreno vs. General Motors LLC	Motion for Attorney Fees

	24-01403942	Plaintiff Abel Loeza Moreno (“Plaintiff”) moves for an order granting Plaintiff attorney fees against defendant General Motors LLC (“Defendant”) in the total amount of \$31,527.15 plus an additional \$3,375.00 for Plaintiff’s counsel to review Defendant’s opposition, draft a reply brief, and attend the hearing on this Motion. Plaintiff also requests costs in the amount of \$1,652.13. To determine the appropriate fee award under Civil Code section 1794, the Court applies the lodestar method. Under the lodestar method, the base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48.) As to costs, Defendant states that it tendered payment in full in the amount of \$1,652.13 in costs. Therefore, the request for costs is denied as moot. As to the lodestar for attorney fees, Defendant argues that the number of hours expended by Plaintiff’s counsel on certain tasks is excessive. The Court agrees that certain entries reflect an excessive number of hours spent for the related tasks and that the hours should accordingly be reduced as follows: · Preparing Plaintiff’s discovery requests and notice of deposition: 2.8 hours to 1.5 hours (cutting \$559.00); · Review of discovery responses and preparation of meet and confer letter: 4.5 hours to 2.0 hours (cutting \$1,075.00); · Drafting motion to compel: 4.8 hours to 3.0 hours (cutting \$774.00); · Drafting fee motion: 5.7 hours to 4.0 hours (cutting \$765.00).
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		The above items total \$3,173.00 in reductions from the requested lodestar. Defendant argues that 13.7 hours of time billed on this matter should be stricken because the work performed is clerical in nature. The Court agrees that time spent uploading files to counsel's filing system is not recoverable, as these tasks are purely secretarial in nature and need not be performed by a paralegal. The hours billed for uploading documents total to 0.55 hours at a rate of \$215/hour. Therefore, an additional \$118.25 is deducted from the total requested fees. Based on the Court's experience and knowledge of the prevailing rates in the Orange County area for similar services, the Court finds the remaining number of hours and counsel's hourly rates to be reasonable. Considering the above, the Motion for Attorney Fees is GRANTED in the total amount of \$31,610.90. Plaintiff to give notice
108	Allies Tax Relief, Inc. vs. Allies Tax Services, Inc. 25-01483396	1. Motion to Lift Stay Plaintiff ALLIES TAX RELIEF, INC. ("Plaintiff") moves this Court for an order lifting the stay imposed by the Court's November 25, 2025, minute order and restoring this action to active litigation status. Plaintiff further requests that the Court restore or reset Plaintiff's discovery matters previously taken off calendar pursuant to the stay. Motion is denied. If a foreign corporation subject to Corp. Code §§ 2100 et seq. transacts intrastate business and fails to comply with the certification requirements of Corp. Code § 2105, it will not

be permitted to maintain any action or proceeding on any intrastate business transacted in any court in California before compliance with Corp. Code § 2105. [Corp. Code, § 2203, subd.(c)].

Once a foreign corporation commences an action regarding intrastate business, and defendant has asserted by special demurrer or as an affirmative defense in its answer the corporation's lack of capacity to maintain the action due to its failure to qualify to transact intrastate business, the case should be abated to obtain a judicial determination on the issue. In that hearing, the defendant bears the burden of proving that: (1) the action arose out of the transacting of intrastate business by the foreign corporation; and (2) the action was commenced by the corporation prior to qualifying to transact intrastate business. If defendant meets its burden of proof, the suit should be stayed to permit the foreign corporation to comply with the qualification requirements. [United Medical Management Ltd. v. Gatto, 49 Cal. App. 4th 1732, 57, 57 Cal. Rptr. 2d 600 (2d Dist. 1996)]

Furthermore,

If the foreign corporation fails to comply, the matter should be dismissed without prejudice. Id.

Here, on 11/25/2025, this Court sustained Defendant's demurrer and stayed the action because Plaintiff failed to timely file an opposition. Notably, the central argument in that demurrer was that Plaintiff lacked capacity to maintain the action because it is a foreign corporation that is not qualified to do business in the state of CA.

		As such, Defendant effectively sustained its burden as required above. Plaintiff must now show either that it is not a foreign corporation, that it doesn't transact intrastate business, or that it has complied. To that end, Plaintiff fails to show compliance. Ca Corp Code§2203(c) 2. Order to Show Cause re: Dismissal The court will dismiss unless the parties want to be heard regarding compliance as stated above.
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